

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E

**DEFENDANT’S TARGETED SUPPLEMENT TO RULE 1.530 MOTION
(COUNT 3 – CIVIL THEFT): REQUEST FOR RECORD CITATIONS;
TARGETED AMENDMENT OF FINDINGS AND CONCLUSIONS; AND
TEMPORARY STAY**

Defendant, pro se, files this limited supplement to his timely Rule 1.530 motion, directed solely to Count 3 (civil theft), and states:

- 1. Scope.** This filing addresses: (a) “Findings of Fact,” ¶ 3, and (b) “Conclusions of Law,” ¶ 4, which state that civil theft was proven by clear and convincing evidence and cite Plaintiffs’ Exhibit 13 (a pre-suit demand letter). The Final Judgment provides no record citations (exhibit page or transcript page/lines) demonstrating competent, substantial evidence for each civil-theft element independent of the demand letter.
- 2. Governing standards.** Civil theft requires proof by clear and convincing evidence of the statutorily defined theft and felonious intent; attorney

demand letters and unsworn argument are not evidence. Trial findings must rest on competent, substantial evidence in the admitted record; a default does not dispense with proof of liability elements or damages.

3. Relief requested.

- a. Record-Citation Appendix. Direct Plaintiffs, within seven (7) days, to file a Record-Citation Appendix identifying, for each factual assertion in “Findings of Fact,” ¶ 3 and for each element referenced in “Conclusions of Law,” ¶ 4, the admitted exhibit number and page and/or the transcript page/lines supporting that assertion (with the date of admission and any limiting rulings).
- b. Targeted amendment/strike. Upon review, strike or amend any sentence in ¶ 3 and any portion of ¶ 4 that lacks competent, substantial evidentiary support in the admitted record, and remove reliance on Plaintiffs’ Exhibit 13 except solely as proof of the § 772.11 pre-suit demand condition.
- c. Temporary stay; interest schedule. Stay enforcement of Count 3 pending corrected findings and entry of a prejudgment-interest schedule (dates, rates, and method) to permit accurate post-judgment interest.

4. Preservation. This targeted request is without prejudice to the broader

issues in Defendant's pending Rule 1.530 motion and other post-judgment filings.

WHEREFORE, Defendant respectfully requests that the Court grant the following relief, limited to Count 3 (civil theft):

1. Targeted rehearing/clarification. Grant targeted rehearing under Rule 1.530 limited to the "Findings of Fact," ¶ 3 and "Conclusions of Law," ¶ 4 as they relate to Count 3, or in the alternative, clarify/amend those findings without further hearing.

2. Record-Citation Appendix (7 days). Direct Plaintiffs, within seven (7) days, to file a Record-Citation Appendix identifying, for each sentence or clause in "Findings of Fact," ¶ 3 and for each civil-theft element referenced in "Conclusions of Law," ¶ 4:

(a) the admitted exhibit number(s) and page(s) and/or transcript page/lines relied upon; and

(b) the date of admission and any limiting rulings applicable to that evidence.

Plaintiffs' Exhibit 13 (pre-suit demand letter) may be cited only as proof of § 772.11's demand prerequisite, not as substantive evidence of theft elements or felonious intent.

3. Strike/amend unsupported findings. Upon review of the Record-Citation Appendix (or if none is filed), strike or amend any sentence or clause in “Findings of Fact,” ¶ 3 and any portion of “Conclusions of Law,” ¶ 4 for which no competent, substantial evidence exists in the admitted record, and remove any reliance on Exhibit-13 as substantive proof.

4. Element-by-element identification. In any amended findings, identify the record support, if any, for each element of civil theft as to Count 3, including:

- (i) ownership/right to possess an identifiable fund;
- (ii) knowing obtaining/using (or endeavoring to obtain/use) the fund with felonious intent;
- (iii) lack of consent/authorization; and
- (iv) the amounts and dates of the alleged taking—each tied to admitted record cites.

5. Prejudgment-interest schedule (Count 3). Require Plaintiffs, contemporaneously with or within seven (7) days after the Record-Citation Appendix, to file a prejudgment-interest schedule for Count 3 specifying: principal amounts; accrual dates; applicable rates; the method of calculation; and the total through the date of judgment;

failing which, the prejudgment-interest award on Count 3 should be stricken or adjusted.

- 6. Temporary stay.** Temporarily STAY enforcement of Count 3 pending compliance with this Order and entry of corrected findings and the interest schedule.
- 7. Contempt safeguard.** Preclude any coercive contempt related to Count 3 absent an express, evidence-based finding that Defendant has the present ability to comply with the specific act required. See *Bowen v. Bowen*, 471 So. 2d 1274, 1277–78 (Fla. 1985).
- 8. Efficient disposition.** Decide the foregoing on papers or, if the Court prefers, set a Zoom hearing limited to record-citation issues.
- 9. Further relief.** Grant such other and further relief as is just.

This targeted request is without prejudice to all other grounds and relief sought in Defendant's timely Rule 1.530 motion and other post-judgment filings.

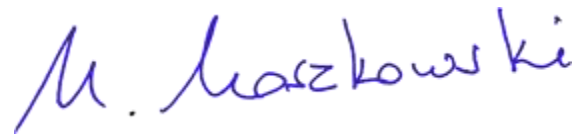
Respectfully submitted this 23rd day of September, 2025

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive style with a large, stylized initial "M".

CERTIFICATE OF SERVICE

I hereby certify that, on this 23rd day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive style with a large, stylized initial "M".